HollaClean Terms of Service

Effective Date: March 1, 2026
Last Updated: March 1, 2026

Important Information Regarding Insurance and Liability

HollaClean and its Service Providers (cleaners) do not carry insurance for property damage or theft. By using this Platform, you (the Customer) acknowledge and agree that:

1. You assume all risk for any property damage, breakage, theft, or loss that may occur during cleaning services
2. Neither HollaClean nor Service Providers are liable for any damage to your property or missing items
3. You must secure all valuables (cash, jewelry, electronics, irreplaceable items) before service begins
4. You will not hold HollaClean or Service Providers responsible for any incidents involving your property
5. You indemnify and hold harmless HollaClean and Service Providers from any property-related claims

If you do not agree to assume all risk and liability for property damage and theft, do not use this Platform.

Welcome to HollaClean

These Terms of Service ("Terms") constitute a legally binding agreement between you and HollaClean ("we," "us," or "our") governing your access to and use of the HollaClean platform, including our website, mobile applications, and all related services (collectively, the "Platform").

Please read these Terms carefully before using the Platform. By creating an account, accessing, or using the Platform, you agree to be bound by these Terms. If you do not agree to these Terms, you may not access or use the Platform.

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1. Definitions

"Customer" or **"Homeowner"** means a user who books cleaning services through the Platform.

"Service Provider" or **"Cleaner"** means an independent contractor who offers cleaning services through the Platform.

"Booking" means a cleaning service request made by a Customer and accepted by a Service Provider.

"Service Fee" means the fee charged by HollaClean for use of the Platform, calculated as a percentage of the total Booking amount.

"Gross Booking Value" or "GMV" means the total amount paid by the Customer for a Booking, before deduction of the Service Fee.

"Net Payment" means the amount paid to the Service Provider after deduction of the Service Fee.

"Content" means all text, images, photos, audio, video, location data, and all other forms of data or communication submitted to or transmitted through the Platform.

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2. Eligibility

2.1 Age Requirement

You must be at least 18 years of age to use the Platform. By agreeing to these Terms, you represent and warrant that you are at least 18 years old.

2.2 Legal Capacity

You represent that you have the legal capacity to enter into a binding contract in the jurisdiction where you reside.

2.3 Geographic Restrictions

The Platform is currently available only to users located in Sudbury, Ontario, Canada, and surrounding areas as determined by HollaClean. HollaClean reserves the right to expand or restrict service areas at any time.

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3. Account Registration

3.1 Account Creation

To use the Platform, you must create an account by providing accurate, current, and complete information, including:

- Full legal name
- Valid email address
- Phone number
- Physical address (for Customers) or service area (for Service Providers)
- Payment information (as applicable)

3.2 Account Types

The Platform offers two types of accounts:

- **Customer Account:** For individuals seeking to book cleaning services
- **Service Provider Account:** For individuals offering cleaning services

3.3 Account Security

You are responsible for:

- Maintaining the confidentiality of your account credentials
- All activities that occur under your account

- Immediately notifying HollaClean of any unauthorized use of your account

3.4 One Account Per Person

Each person may maintain only one active account. Creating multiple accounts may result in suspension or termination of all accounts.

3.5 Account Verification

HollaClean reserves the right to verify your identity and any information you provide. We may request additional documentation, including but not limited to government-issued identification, proof of address, or business licenses.

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4. Services Overview

4.1 Platform Function

HollaClean operates as a technology platform that connects Customers with Service Providers. HollaClean is not a cleaning service provider and does not employ Service Providers. Service Providers are independent contractors responsible for performing the cleaning services.

4.2 No Employment Relationship

Nothing in these Terms creates an employment, partnership, joint venture, or agency relationship between:

- HollaClean and any Service Provider
- HollaClean and any Customer
- Service Providers and Customers beyond the specific Booking arrangement

4.3 HollaClean's Role

HollaClean:

- Provides the technology platform to facilitate Bookings
- Processes payments between Customers and Service Providers
- Provides customer support
- May provide general guidance and best practices
- Does not direct, control, or supervise Service Providers in performing cleaning services

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5. For Customers (Homeowners)

5.1 Booking Process

5.1.1 Creating a Booking Request

Customers can create a Booking by:

- Selecting the type of cleaning service
- Specifying the service location
- Choosing the date and time
- Providing any special instructions or requirements
- Selecting a Service Provider or allowing the system to match

5.1.2 Booking Acceptance

A Booking is confirmed when:

- A Service Provider accepts the Booking request
- Payment authorization is successful
- Both parties receive confirmation via the Platform

5.1.3 Booking Modifications

Customers may request modifications to a Booking by contacting the Service Provider through the Platform. Any agreed-upon changes must be documented through the Platform messaging system.

5.2 Customer Responsibilities

Customers agree to:

- Provide accurate information about the service location and requirements
- Ensure safe and reasonable access to the property
- Secure all valuables, cash, jewelry, electronics, and irreplaceable items before service begins - Customers are solely responsible for any items that are damaged, broken, or go missing
- Remove or clearly identify any fragile, expensive, or sentimental items
- Provide adequate notice of any access codes, keys, or special entry instructions
- Ensure pets are secured or removed from work areas
- Disclose any potential hazards or special circumstances
- Be available by phone during the service period
- Provide a safe working environment free from harassment or inappropriate conduct

By booking a service, Customer acknowledges and accepts that:

- Neither HollaClean nor Service Providers carry insurance for property damage or theft
- Customer assumes all risk for any damage, breakage, or loss during service
- Customer will not hold HollaClean or Service Providers liable for any incidents
- Cleaning services involve inherent risks of accidental damage
- Customer has been advised to remove and secure all valuable items

5.3 Property Access

5.3.1 Customer Responsibility

Customers must provide clear instructions for property access, including:

- Entry codes or key locations
- Special entry procedures
- Parking information
- Contact information for emergencies

5.3.2 Access Issues

If a Service Provider cannot access the property due to Customer error (e.g., incorrect codes, locked doors, no answer), the Customer may be charged a trip fee as determined by the Service Provider and agreed upon through the Platform.

5.4 Customer Conduct

Customers must not:

- Request or expect Service Providers to work in unsafe conditions
- Make unwelcome advances or engage in harassment of any kind
- Request services outside the scope of the Platform
- Attempt to bypass the Platform to pay Service Providers directly
- Make false claims or file fraudulent disputes

5.5 Customer Payment Obligations

Customers agree to:

- Pay the full amount displayed at the time of Booking
- Pay for any additional services agreed upon with the Service Provider

- Not dispute legitimate charges
- Not request chargebacks for services rendered satisfactorily

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6. For Service Providers (Cleaners)

6.1 Independent Contractor Status

6.1.1 Nature of Relationship

Service Providers are independent contractors, not employees of HollaClean. Service Providers:

- Set their own rates within Platform guidelines
- Control their own work schedule and availability
- May accept or decline Booking requests at their discretion
- May work for competitors or other platforms
- Are responsible for their own equipment and supplies (unless otherwise agreed)
- Determine their own methods for completing services

6.1.2 Tax Obligations

Service Providers are solely responsible for:

- All applicable federal, provincial, and local taxes
- Reporting income to the Canada Revenue Agency (CRA)
- Maintaining accurate records of earnings
- Paying GST/HST if required by law (when annual revenue exceeds $30,000 CAD)

HollaClean will issue tax forms (e.g., T4A slips) as required by Canadian law for Service Providers earning above reporting thresholds.

6.2 Service Provider Requirements

6.2.1 Basic Requirements

Service Providers must:

- Be at least 18 years of age
- Have legal authorization to work in Canada
- Possess basic cleaning skills and knowledge
- Provide their own transportation to service locations

- Maintain professional appearance and conduct
- Respond promptly to Booking requests and messages

6.2.2 Insurance and Liability

HollaClean does not provide any insurance coverage for Service Providers, and Service Providers are not required to carry insurance at this time.

Service Providers are not liable for:

- Property damage occurring during cleaning services
- Theft or loss of items from Customer property
- Pre-existing damage discovered during service
- Accidental breakage or damage to Customer belongings

Customers assume all risk and liability for any damage, theft, or loss that may occur during cleaning services. By booking through HollaClean, Customers acknowledge and accept full responsibility for:

- Securing all valuables before service
- Removing fragile or irreplaceable items from cleaning areas
- Any items that are damaged, broken, or go missing during service
- Pre-existing conditions or damage to property

Customer Responsibility:

Customers must:

- Remove or secure all valuables, jewelry, cash, electronics, and irreplaceable items before the Service Provider arrives
- Inform Service Providers of any fragile items or areas to avoid
- Accept that cleaning involves inherent risks of accidental damage
- Not hold HollaClean or Service Providers liable for any damage, theft, or loss

If you are not comfortable with this arrangement, do not use the Platform.

Service Providers may optionally choose to obtain their own insurance at their own expense, but this is not required or verified by HollaClean.

6.2.3 Equipment and Supplies

Service Providers are expected to provide their own:

- Cleaning supplies and products

- Equipment (vacuums, mops, etc.)
- Personal protective equipment
- Transportation

Customers and Service Providers may mutually agree to alternative arrangements (e.g., using Customer-provided supplies), which must be documented through the Platform.

6.3 Service Provider Responsibilities

6.3.1 Accepting Bookings

When accepting a Booking, Service Providers agree to:

- Arrive on time or notify the Customer of delays
- Perform the agreed-upon services to a professional standard
- Treat Customer property with care and respect
- Complete the service within the estimated time frame
- Document any issues or discrepancies immediately

6.3.2 Service Quality Standards

Service Providers must:

- Perform services in a workmanlike manner consistent with industry standards
- Use safe and appropriate cleaning methods and products
- Report any damage or incidents immediately through the Platform
- Complete all agreed-upon tasks unless circumstances prevent completion
- Maintain open communication with Customers

6.3.3 Customer Property

Service Providers must:

- Respect Customer property and privacy
- Not access areas of the property beyond those specified for cleaning
- Not remove any items from the property without explicit written permission
- Report any pre-existing damage or issues immediately
- Secure the property upon departure (lock doors, close windows, etc.)

6.4 Service Provider Conduct

Service Providers must not:

- Engage in theft, fraud, or dishonest conduct
- Harass, intimidate, or make unwelcome advances toward Customers
- Bring unauthorized individuals to the service location
- Use Customer property for personal purposes
- Consume alcohol or use drugs before or during service
- Request or accept direct payment from Customers outside the Platform
- Solicit Customers to book services outside the Platform for a period of 12 months after initial contact
- Share Customer contact information or service details with third parties

6.5 Availability and Scheduling

Service Providers:

- Control their own availability and schedule
- May accept or decline Booking requests at their discretion
- Should maintain reasonable acceptance and completion rates for good Platform standing
- Must provide adequate notice if unable to fulfill a confirmed Booking

6.6 Background Checks

HollaClean reserves the right to:

- Require criminal background checks for Service Providers at any time
- Remove Service Providers with disqualifying criminal records
- Periodically re-screen Service Providers

Cost Responsibility:

If background checks are required, Service Providers are solely responsible for all costs associated with obtaining and submitting background checks. HollaClean will not reimburse or cover any background check expenses.

Current Status:

Background checks are not currently mandatory but may be required in the future. Service Providers will be given reasonable notice (minimum 30 days) before background check requirements take effect. Service Providers who do not complete required background checks within the specified timeframe will have their accounts suspended or terminated.

No Guarantee:

Even if background checks are implemented, HollaClean makes no guarantee regarding the safety, trustworthiness, or conduct of any Service Provider. Customers use the Platform at their own risk.

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7. Payments and Fees

7.1 Payment Processing

All payments are processed through the Platform using Stripe, a third-party payment processor. By using the Platform, you agree to Stripe's terms and conditions.

7.2 Customer Payments

7.2.1 Payment Authorization

When a Customer creates a Booking:

- The Customer's payment method is authorized for the full Booking amount
- Authorization is held until 24 hours after service completion
- The charge is captured only after successful service completion

7.2.2 Payment Timing

- Payment is captured 24 hours after the scheduled service completion time
- Customers can report issues within this 24-hour window
- Disputed charges are held pending resolution

7.2.3 Accepted Payment Methods

HollaClean accepts:

- Credit cards (Visa, Mastercard, American Express)
- Debit cards
- Other payment methods as made available through Stripe

Cash payments are not accepted through the Platform.

7.3 Service Provider Payments

7.3.1 Platform Service Fee

HollaClean charges a Service Fee based on the Gross Booking Value:

- **Current Rate:** 10-15% of GMV (see hollaclean.com/pricing for current rates)
- Service Fee percentage may vary based on service type, promotions, or Service Provider performance
- Service Fee changes will be communicated with at least 30 days' notice

7.3.2 Net Payment Calculation

```
Net Payment = Gross Booking Value - Service Fee - Payment Processing Fees
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Example:

- Customer pays: $100.00
- Service Fee (10%): -$10.00
- Stripe processing fee (~2.9% + $0.30): -$3.20
- Service Provider receives: $86.80

7.3.3 Payout Schedule

Service Providers receive payments:

- **Timing:** Within 2 business days after service completion and payment capture
- **Method:** Direct deposit to the bank account on file
- **Minimum Payout:** $25.00 (earnings below this threshold accumulate until reached)

7.3.4 Payout Holds

HollaClean may place a temporary hold on payouts if:

- There is an open dispute
- Fraudulent activity is suspected
- Account verification is pending
- A Customer has filed a chargeback

7.4 Additional Charges

7.4.1 Add-On Services

If a Customer and Service Provider agree to additional services beyond the original Booking:

- The additional amount must be processed through the Platform
- The same Service Fee applies to add-on services
- Add-ons must be documented through Platform messaging

7.4.2 Trip Fees and Cancellations

Service Providers may charge trip fees or cancellation fees as outlined in Section 8 (Cancellations and Refunds).

7.5 Promotions and Discounts

7.5.1 Customer Promotions

HollaClean may offer promotional discounts to Customers:

- Discounts are applied to the Gross Booking Value
- Service Providers receive their full Net Payment based on the discounted amount
- HollaClean absorbs the discount cost

7.5.2 Referral Credits

Both Customers and Service Providers may receive referral credits:

- Credits can be applied to future Bookings (Customers) or offset Service Fees (Service Providers)
- Credits expire 12 months after issuance
- Credits are non-transferable and have no cash value

7.6 Pricing Transparency

- All prices displayed include applicable taxes and fees
- Customers see the total amount they will be charged before confirming a Booking
- Service Providers see the Net Payment they will receive before accepting a Booking

7.7 Currency

All transactions are processed in Canadian Dollars (CAD).

7.8 No Direct Payments

7.8.1 Prohibition

Customers and Service Providers are strictly prohibited from:

- Exchanging direct payments outside the Platform
- Arranging "off-platform" bookings within 12 months of initial contact through HollaClean
- Circumventing the Platform to avoid Service Fees

7.8.2 Enforcement

Violations may result in:

- Immediate account suspension
- Withholding of payments
- Legal action to recover lost fees
- Permanent ban from the Platform

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8. Cancellations and Refunds

8.1 Customer Cancellations

8.1.1 Cancellation Before Service

Customers may cancel a Booking:

- **More than 24 hours before:** Full refund, no penalty
- **12-24 hours before:** 50% refund, 50% charged to Customer (25% to Service Provider, 25% to HollaClean)
- **Less than 12 hours before:** No refund, full amount charged (80% to Service Provider, 20% to HollaClean)
- **After Service Provider arrival:** No refund, full amount charged

8.1.2 How to Cancel

Cancellations must be processed through the Platform. Customers should:

1. Log into their account
2. Navigate to "My Bookings"
3. Select the Booking and click "Cancel"
4. Confirm cancellation and reason

8.2 Service Provider Cancellations

8.2.1 Cancellation by Service Provider

Service Providers should make every effort to honor confirmed Bookings. If cancellation is unavoidable:

- **More than 24 hours before:** No penalty
- **12-24 hours before:** Warning issued, affects Platform standing
- **Less than 12 hours before:** $25 penalty, affects Platform standing

- **No-show:** $50 penalty, serious impact on Platform standing

Frequent cancellations may result in account suspension or termination.

8.2.2 Emergency Exceptions

Cancellation penalties may be waived for documented emergencies:

- Medical emergencies
- Family emergencies
- Severe weather or natural disasters
- Vehicle breakdown (with proof)

Service Providers must notify HollaClean support immediately with documentation.

8.3 Refunds for Service Issues

8.3.1 Customer Complaints

If a Customer is dissatisfied with service quality:

- Customer must report issues within 24 hours of service completion
- Customer should provide photos or detailed description of issues
- HollaClean will review and mediate

8.3.2 Refund Determination

HollaClean may issue partial or full refunds based on:

- Severity of the issue
- Service Provider's response
- Supporting evidence provided
- Service Provider's history

8.3.3 Refund Options

- **Full refund:** Service was not performed or was completely unsatisfactory
- **Partial refund:** Some tasks were incomplete or unsatisfactory
- **Re-service:** Service Provider returns to correct issues (no additional charge)
- **No refund:** Issue is minor or unsubstantiated

8.4 Service Provider Disputes

Service Providers may dispute refund requests by:

- Providing photos or documentation of completed work
- Explaining any issues or obstacles encountered
- Demonstrating compliance with Booking requirements

HollaClean will review evidence from both parties before making a final determination.

8.5 Chargebacks

8.5.1 Prohibited Chargebacks

Customers agree not to initiate chargebacks through their payment provider for legitimate services rendered. Chargebacks should only be initiated for:

- Fraudulent or unauthorized charges
- Services not rendered at all
- Double-billing errors

8.5.2 Chargeback Fees

Customers who initiate improper chargebacks may:

- Have their account suspended or terminated
- Be charged a chargeback processing fee ($25-50)
- Be banned from future use of the Platform

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9. Reviews and Ratings

9.1 Review System

9.1.1 Mutual Reviews

After each completed Booking:

- Customers may review Service Providers
- Service Providers may review Customers
- Reviews become visible after both parties submit, or after 7 days (whichever comes first)

9.1.2 Review Content

Reviews may include:

- Star rating (1-5 stars)
- Written comments
- Specific feedback categories (e.g., punctuality, quality, communication)

9.2 Review Guidelines

Reviews must:

- Be based on actual experience with the service or Customer
- Be honest and constructive
- Relate to the specific Booking
- Comply with content standards (no harassment, profanity, discrimination, etc.)

Reviews must not:

- Contain personal attacks or defamatory statements
- Include personal contact information
- Reference off-platform interactions
- Threaten or coerce the other party
- Be submitted in exchange for compensation

9.3 Review Moderation

HollaClean reserves the right to:

- Remove reviews that violate these Terms
- Investigate suspicious review patterns
- Suspend accounts engaging in review manipulation
- Edit reviews to remove inappropriate content (with notification)

9.4 Responding to Reviews

Users may respond to reviews left about them:

- Responses should be professional and constructive
- Responses must also comply with review guidelines
- Multiple responses are not permitted

9.5 Impact of Reviews

9.5.1 Service Provider Ratings

Service Providers with consistently low ratings (below 4.0 stars) may:

- Receive coaching and guidance from HollaClean
- Be placed on probation
- Have their account suspended or terminated

9.5.2 Customer Ratings

Customers with consistently low ratings may:

- Find fewer Service Providers willing to accept their Bookings
- Be required to provide additional information for future Bookings
- Have their account suspended if ratings indicate problematic behavior

9.6 Disputes

Users may dispute reviews they believe are false or violate guidelines by contacting support@hollaclean.com. HollaClean will investigate and take appropriate action.

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10. User Conduct and Prohibited Activities

10.1 Acceptable Use

Users agree to:

- Use the Platform only for its intended purpose
- Provide accurate and truthful information
- Treat other users with respect and professionalism
- Comply with all applicable laws and regulations
- Maintain the security and confidentiality of their account

10.2 Prohibited Activities

Users must not:

10.2.1 Illegal Activities

- Engage in any illegal activity or use the Platform for illegal purposes

- Violate any local, provincial, or federal laws
- Engage in fraud, theft, or misrepresentation

10.2.2 Platform Abuse

- Create fake accounts or use false identities
- Manipulate reviews or ratings
- Bypass or circumvent Platform fees
- Use automated systems (bots, scrapers) to access the Platform
- Attempt to reverse engineer or hack the Platform

10.2.3 Harassment and Discrimination

- Harass, abuse, threaten, or intimidate other users
- Discriminate based on race, ethnicity, religion, gender, sexual orientation, disability, or any other protected characteristic
- Make unwelcome sexual advances
- Engage in hate speech or promote violence

10.2.4 Content Violations

- Post false, misleading, or defamatory content
- Share inappropriate, obscene, or offensive content
- Violate intellectual property rights
- Share private information about others without consent

10.2.5 Platform Circumvention

- Solicit or accept direct payments outside the Platform
- Arrange off-platform bookings to avoid Service Fees
- Share contact information with the intent to bypass the Platform
- Recruit users to competing platforms

10.3 Enforcement

Violations of these Terms may result in:

- Warning and account review
- Temporary suspension

- Permanent ban
- Withholding of payments
- Legal action and referral to law enforcement

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11. Intellectual Property

11.1 HollaClean's Intellectual Property

The Platform and all its content, including but not limited to:

- HollaClean name, logo, and branding
- Website design, layout, and code
- Text, graphics, images, and videos
- Software and algorithms

are owned by HollaClean or its licensors and are protected by Canadian and international copyright, trademark, and other intellectual property laws.

11.2 License to Use Platform

HollaClean grants you a limited, non-exclusive, non-transferable, revocable license to access and use the Platform for its intended purpose in accordance with these Terms.

11.3 User Content

11.3.1 License Grant

By submitting Content to the Platform (e.g., profile information, photos, reviews), you grant HollaClean a worldwide, non-exclusive, royalty-free, transferable license to:

- Use, reproduce, distribute, and display the Content
- Modify or adapt the Content for Platform use
- Sublicense the Content to third parties for Platform operations

11.3.2 Ownership

You retain ownership of Content you submit. However, you represent and warrant that:

- You own or have the necessary rights to submit the Content
- The Content does not infringe on any third-party rights
- You have permission to use any images of people or property

11.4 Restrictions

You may not:

- Use the HollaClean name, logo, or branding without permission
- Copy, modify, or create derivative works based on the Platform
- Reverse engineer, decompile, or disassemble any Platform software
- Remove or modify any proprietary notices

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12. Privacy and Data Protection

12.1 Privacy Policy

Your use of the Platform is also governed by our Privacy Policy, which is incorporated into these Terms by reference. Please review the Privacy Policy at hollaclean.com/privacy.

12.2 Data Collection

HollaClean collects and processes personal information as described in the Privacy Policy, including:

- Account information (name, email, phone, address)
- Payment information (processed securely through Stripe)
- Location data (for service delivery)
- Usage data and analytics
- Communications between users

12.3 PIPEDA Compliance

HollaClean complies with Canada's Personal Information Protection and Electronic Documents Act (PIPEDA). We:

- Collect personal information only for legitimate business purposes
- Obtain consent for collection, use, and disclosure
- Protect personal information with appropriate security measures
- Provide access to personal information upon request
- Allow individuals to challenge compliance

12.4 Data Sharing

HollaClean shares personal information only as necessary:

- With Service Providers and Customers to facilitate Bookings
- With payment processors (Stripe) for transaction processing
- With service providers who assist in Platform operations
- As required by law or legal process
- With consent for other purposes

12.5 Your Privacy Rights

You have the right to:

- Access your personal information
- Request corrections to inaccurate information
- Withdraw consent for certain uses
- Request deletion of your account and data (subject to legal retention requirements)
- Lodge a complaint with the Office of the Privacy Commissioner of Canada

For privacy-related inquiries, contact privacy@hollaclean.com.

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13. Disclaimers and Limitations of Liability

13.1 Platform "As Is"

THE PLATFORM IS PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

13.2 No Guarantee of Service

HollaClean does not guarantee:

- The availability, reliability, or timeliness of the Platform
- The quality, safety, or legality of services performed by Service Providers
- The accuracy or reliability of Content submitted by users
- That the Platform will be error-free or uninterrupted
- That any specific Service Provider will be available at any given time

13.3 Third-Party Services

The Platform integrates with third-party services (e.g., Stripe for payments, Google Maps for location services). HollaClean is not responsible for:

- Third-party service interruptions or failures
- Third-party terms and conditions
- Third-party data practices or security breaches

13.4 Limitation of Liability

To the maximum extent permitted by law, HollaClean and its officers, directors, employees, and agents shall not be liable for:

13.4.1 Indirect Damages

- Indirect, incidental, special, consequential, or punitive damages
- Loss of profits, revenue, data, or goodwill
- Cost of substitute services
- Business interruption

13.4.2 Property Damage and Theft

HollaClean and Service Providers are not liable for:

- Any property damage, breakage, or destruction occurring during cleaning services
- Any theft, loss, or missing items from Customer property
- Damage to Customer belongings, furniture, fixtures, or real property
- Any pre-existing damage discovered during service
- Any consequential damages resulting from property damage or theft

Customers acknowledge and agree that they use the Platform entirely at their own risk regarding property damage and theft.

13.4.3 Direct Damages Cap

HollaClean's total liability for any claims arising from or related to the Platform (including but not limited to service quality, Platform errors, or data breaches) shall not exceed the greater of:

- (A) $100 CAD, or
- (B) The total fees paid by you to HollaClean in the 12 months preceding the claim

This liability cap does not apply to property damage or theft claims because HollaClean has zero liability for such claims.

13.4.4 Exceptions

Some jurisdictions do not allow the exclusion or limitation of certain warranties or damages. In such jurisdictions, the above limitations may not apply to you to the extent prohibited by law. However, HollaClean's disclaimer of liability for property damage and theft shall apply to the maximum extent permitted by law.

13.5 User Disputes

HollaClean is not a party to disputes between Customers and Service Providers and has no obligation to resolve such disputes. HollaClean is not responsible for and expressly disclaims all liability for:

- Service quality disagreements
- Property damage, breakage, or destruction of any kind
- Theft, loss, or missing items from Customer property
- Personal injury occurring during service
- Scheduling conflicts
- Payment disputes between users (except for Platform processing errors)
- Any claims arising from the service relationship between Customers and Service Providers

No Liability for Damage or Theft:

By using the Platform, both Customers and Service Providers acknowledge and agree that:

- HollaClean provides only a technology platform to connect parties
- HollaClean has no control over the quality, safety, or outcome of services performed
- HollaClean does not insure, guarantee, or assume any liability for property damage or theft
- All disputes regarding damage, theft, or loss must be resolved directly between Customer and Service Provider
- HollaClean will not mediate, arbitrate, or provide any compensation for property-related claims

While HollaClean may provide customer support and facilitate communication between parties, we do not guarantee resolution of any dispute and are not liable for any outcomes.

13.6 Safety and Security

Users are solely responsible for their own safety and security when using the Platform. HollaClean recommends:

- Meeting Service Providers at the service location (not isolated or unfamiliar locations)
- Verifying Service Provider profiles and reviews
- Reporting suspicious behavior immediately
- Following common-sense safety precautions

14. Indemnification

14.1 Indemnification by Users

You agree to indemnify, defend, and hold harmless HollaClean and its officers, directors, employees, agents, and affiliates from and against any and all claims, damages, obligations, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from:

14.1.1 Your Use of the Platform

- Your violation of these Terms
- Your violation of any law or regulation
- Your violation of any third-party rights, including intellectual property rights or privacy rights

14.1.2 Your Content

- Content you submit to the Platform
- False, misleading, or defamatory statements you make
- Infringement claims related to your Content

14.1.3 For Service Providers

- Services you provide to Customers (excluding property damage and theft claims, which are disclaimed in Section 13)
- Your compliance with applicable laws, including tax and employment laws
- Disputes with Customers regarding service quality or payment (excluding property damage and theft)
- Your independent contractor status and tax obligations
- Any misrepresentation of your qualifications or background

Note: Service Providers are NOT required to indemnify HollaClean for property damage or theft claims because such liability is fully disclaimed and assumed by Customers under these Terms.

14.1.4 For Customers

- Your interactions with Service Providers
- Any claims for property damage, theft, or loss occurring at your property during or after service - you agree to indemnify and hold harmless HollaClean and Service Providers for any such claims
- Any third-party claims (including insurance companies, landlords, or property owners) related to damage or theft during cleaning services
- Personal injury occurring at your property during service

- False or fraudulent claims against Service Providers
- Failure to secure valuables or disclose hazards as required by these Terms
- Any breach of your obligation to assume all risk for property damage and theft

14.2 Defense of Claims

HollaClean reserves the right, at its own expense, to assume the exclusive defense and control of any matter subject to indemnification by you. You agree to cooperate with HollaClean's defense of such claims.

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15. Dispute Resolution

15.1 Informal Resolution

Before initiating any formal dispute resolution, you agree to contact HollaClean at support@hollaclean.com and attempt to resolve the dispute informally. Please provide:

- Your name and account information
- Description of the dispute
- Desired resolution

HollaClean will respond within 5 business days and work with you in good faith to resolve the issue.

15.2 Governing Law

These Terms shall be governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein, without regard to conflict of law principles.

15.3 Jurisdiction and Venue

You agree that any legal action or proceeding arising out of or relating to these Terms or the Platform shall be brought exclusively in the courts located in Sudbury, Ontario, Canada. You submit to the personal jurisdiction of such courts and waive any objection to venue.

15.4 Arbitration (Optional Future Implementation)

HollaClean reserves the right to require binding arbitration for disputes in the future. If implemented, users will be notified and given the option to opt out within 30 days.

15.5 Class Action Waiver

TO THE EXTENT PERMITTED BY LAW, YOU AGREE THAT ANY DISPUTE RESOLUTION PROCEEDINGS WILL BE CONDUCTED ONLY ON AN INDIVIDUAL BASIS AND NOT IN A CLASS, CONSOLIDATED, OR REPRESENTATIVE ACTION.

15.6 Time Limitation

Any cause of action or claim you may have arising out of or relating to these Terms or the Platform must be commenced within one (1) year after the cause of action accrues. Otherwise, such cause of action or claim is permanently barred.

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16. Termination

16.1 Termination by You

16.1.1 Closing Your Account

You may terminate your account at any time by:

1. Logging into your account
2. Navigating to "Account Settings"
3. Selecting "Delete Account"
4. Confirming deletion

Alternatively, you may contact support@hollaclean.com to request account deletion.

16.1.2 Effect of Termination

Upon termination:

- You will no longer have access to the Platform
- Outstanding Bookings may be cancelled (subject to cancellation policies)
- Earned but unpaid funds will be paid out according to the standard payout schedule
- Some data may be retained as required by law or for legitimate business purposes

16.2 Termination by HollaClean

16.2.1 With Cause

HollaClean may suspend or terminate your account immediately if:

- You violate these Terms
- You engage in fraudulent or illegal activity
- You harass or threaten other users
- Your account poses a security or legal risk
- You repeatedly receive poor ratings (Service Providers)

- You repeatedly cancel confirmed Bookings (Service Providers)

16.2.2 Without Cause

HollaClean may terminate your account for any reason with 30 days' notice.

16.2.3 Effect of Termination by HollaClean

Upon termination:

- Access to the Platform is immediately revoked
- Outstanding Bookings may be cancelled
- Pending payments may be withheld pending investigation of policy violations
- You may not create a new account without HollaClean's express permission

16.3 Survival

The following sections survive termination:

- Sections 7 (Payments and Fees) - for outstanding obligations
- Section 11 (Intellectual Property)
- Section 13 (Disclaimers and Limitations of Liability)
- Section 14 (Indemnification)
- Section 15 (Dispute Resolution)
- This Section 16.3 (Survival)

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17. Changes to Terms

17.1 Right to Modify

HollaClean reserves the right to modify these Terms at any time. We will provide notice of material changes by:

- Posting the updated Terms on the Platform with a new "Last Updated" date
- Sending an email notification to registered users
- Displaying a prominent notice on the Platform

17.2 Acceptance of Changes

Your continued use of the Platform after the effective date of the updated Terms constitutes your acceptance of the changes. If you do not agree to the updated Terms, you must stop using the Platform and may terminate your account.

17.3 Material Changes

For material changes that substantially affect your rights, HollaClean will provide at least 30 days' notice before the changes take effect. Material changes may include:

- Increases to Service Fees
- Changes to payment terms
- Changes to dispute resolution procedures
- Significant changes to liability limitations

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18. General Provisions

18.1 Entire Agreement

These Terms, together with the Privacy Policy and any other policies referenced herein, constitute the entire agreement between you and HollaClean regarding the Platform and supersede all prior agreements and understandings.

18.2 Severability

If any provision of these Terms is found to be invalid or unenforceable by a court of competent jurisdiction, the remaining provisions shall remain in full force and effect. The invalid or unenforceable provision shall be modified to the minimum extent necessary to make it valid and enforceable.

18.3 Waiver

HollaClean's failure to enforce any right or provision of these Terms shall not be deemed a waiver of such right or provision. Any waiver of any provision of these Terms will be effective only if in writing and signed by HollaClean.

18.4 Assignment

You may not assign or transfer these Terms or your account without HollaClean's prior written consent. HollaClean may assign or transfer these Terms or any rights or obligations hereunder without restriction.

18.5 Force Majeure

HollaClean shall not be liable for any failure to perform its obligations under these Terms due to circumstances beyond its reasonable control, including but not limited to:

- Acts of God (natural disasters, severe weather)
- War, terrorism, or civil unrest
- Pandemics or public health emergencies

- Government actions or regulations
- Power outages or telecommunications failures
- Internet service provider failures

18.6 Language

These Terms have been prepared in English. If these Terms are translated into another language, the English version shall prevail in the event of any inconsistency or discrepancy.

18.7 Notices

18.7.1 To You

HollaClean may provide notices to you:

- Via email to the address associated with your account
- By posting on the Platform
- Through in-app notifications

You are responsible for keeping your contact information current.

18.7.2 To HollaClean

You may provide notices to HollaClean:

- By email to legal@hollaclean.com
- By mail to: HollaClean, 1003-256 Caswell Drive, Sudbury, ON P3E 2N9, Canada

Notices are deemed received when sent (email) or 3 business days after mailing (postal mail).

18.8 Relationship of Parties

Nothing in these Terms creates a partnership, joint venture, employment, or agency relationship between HollaClean and any user, or between users themselves (except for the limited service relationship between Customer and Service Provider for specific Bookings).

18.9 Third-Party Beneficiaries

These Terms do not create any third-party beneficiary rights.

18.10 Electronic Communications

By using the Platform, you consent to receive electronic communications from HollaClean, including emails, text messages, and in-app notifications. These communications may include:

- Booking confirmations and reminders

- Payment receipts
- Account notifications
- Marketing communications (you may opt out)
- Service updates and Platform announcements

You agree that all agreements, notices, disclosures, and other communications provided electronically satisfy any legal requirement that such communications be in writing.

18.11 California and Quebec Residents

If you are a California resident, you may have these Terms mailed to you by sending a written request to the address above. If you are a Quebec resident, the provisions of the Civil Code of Quebec may apply to certain aspects of these Terms.

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19. Contact Information

19.1 General Inquiries

For questions about these Terms or the Platform:

- Email: support@hollaclean.com
- Phone: 705-665-6826 or 416-836-8756 (Available Monday-Friday, 9 AM - 5 PM EST)

19.2 Legal Inquiries

For legal notices or concerns:

- Email: legal@hollaclean.com
- Address: HollaClean, 1003-256 Caswell Drive, Sudbury, ON P3E 2N9, Canada

19.3 Privacy Inquiries

For privacy-related questions:

- Email: privacy@hollaclean.com

19.4 Feedback

We welcome your feedback:

- Email: feedback@hollaclean.com

Acceptance of Terms

BY CREATING AN ACCOUNT, ACCESSING, OR USING THE PLATFORM, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THESE TERMS OF SERVICE.

IF YOU DO NOT AGREE TO THESE TERMS, YOU MAY NOT USE THE PLATFORM.

Last Updated: March 1, 2026
Effective Date: March 1, 2026

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